

SENATE BILL 2321

By Yarbro

AN ACT to amend Tennessee Code Annotated, Title 2 and
Title 39, Chapter 17, relative to deepfakes in
election communications.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-1902, is amended by adding
the following as a new subdivision:

() "Electoral deepfake" means a deepfake that depicts a candidate or political
party with the intent to injure the reputation of the candidate or political party or
otherwise deceive a voter and that:

(1) Appears to a reasonable person to depict a real individual saying or
doing something that did not actually occur in reality; or

(2) Gives a reasonable person a fundamentally different understanding
or impression of an appearance, action, or speech than the reasonable person
would have gotten from an unaltered, original version of the image, audio
recording, video recording, or other media.

SECTION 2. Tennessee Code Annotated, Title 39, Chapter 17, Part 19, is amended by
adding the following as a new section:

**39-17-1907. Deceptive and fraudulent electoral deepfakes in election
communications.**

(a) Except as provided in subsection (b), a person, corporation, committee, or
other entity shall not, within ninety (90) days of an election, distribute an electoral
deepfake that the person, corporation, committee, or other entity knows or should have

known deceptively or fraudulently depicts a candidate or the political party of a candidate running for a state or local office.

(b)

(1) The prohibition in subsection (a) does not apply if the image or audio or visual recording or other media includes a disclosure stating: "This _____ has been manipulated or generated by artificial intelligence."

(2) The disclosure in subdivision (b)(1) must identify the deceptive or fraudulent media as:

(A) An image;

(B) A video recording;

(C) An audio recording; or

(D) A combination of subdivision (b)(2)(A), (B), or (C).

(3) For an image, video recording, or other visual media, the text of the disclosure must appear in a size that is easily readable by the average viewer. For visual media that is a video recording, the disclosure must appear for the duration of the video recording.

(4) If the media consists of an audio recording only, then the disclosure must be read in a clearly spoken manner and in a pitch that can be easily heard by the average listener at the beginning of the audio recording; at the end of the audio recording; and, if the audio recording is longer than two (2) minutes, then the disclosure must be read intermittently within the audio recording at intervals of no more than two (2) minutes each.

(c)

(1) A candidate or political party who is depicted in an electoral deepfake in violation of this section may seek injunctive or other equitable relief prohibiting the publication of the electoral deepfake.

(2) A person, corporation, committee, or other entity may be held liable by a county election commission for the following civil penalties for violating this section:

(A) For a violation within five (5) years of one (1) or more prior violations under this section, a fine of not more than ten thousand dollars (\$10,000);

(B) For a violation with the intent to cause violence or bodily harm, a fine of not more than five thousand dollars (\$5,000); or

(C) For all other violations, a fine of not more than one thousand dollars (\$1,000).

(d) This section does not apply to a radio or television broadcasting station, including a cable or satellite television operator, programmer, or producer, that broadcasts an electoral deepfake as part of a bona fide newscast, news interview, news documentary, or on-the-spot coverage of bona fide news events, if the broadcast clearly acknowledges through content or a disclosure, in a manner that can be easily heard or read by the average listener or viewer, that there are questions about the authenticity of the electoral deepfake, or in cases where federal law requires broadcasters to air electoral or campaign advertisements.

(e) This section does not apply to a radio or television broadcasting station, including a cable or satellite television operator, programmer, or producer, when it is paid to broadcast an electoral deepfake and has made a good faith effort to establish the

depiction is not an electoral deepfake, or in cases where federal law requires broadcasters to air electoral or campaign advertisements.

(f) This section does not apply to a website, or a regularly published newspaper, magazine, or other periodical of general circulation, including an internet or electronic publication, that routinely carries news and commentary of general interest, and that publishes an electoral deepfake prohibited by this section, if the publication clearly states that the electoral deepfake does not accurately represent the appearance, action, or speech of a candidate or political party.

(g) This section does not apply to electoral deepfakes that constitute satire or parody.

SECTION 3. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 4. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.